

OFFICE OF THE SECRETARY

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Sacramento, CA 94283-0001



March 14, 2019

The Honorable Herbert J. Exarhos
Judge of the Superior Court
County of San Diego
P. O. Box 122724
San Diego, CA 92112

Re: James A. Kurtenbach
CDCR No: AF9068
Case No: SCE286557
Date of Sentence: December 21, 2010

Dear Honorable Herbert J. Exarhos:

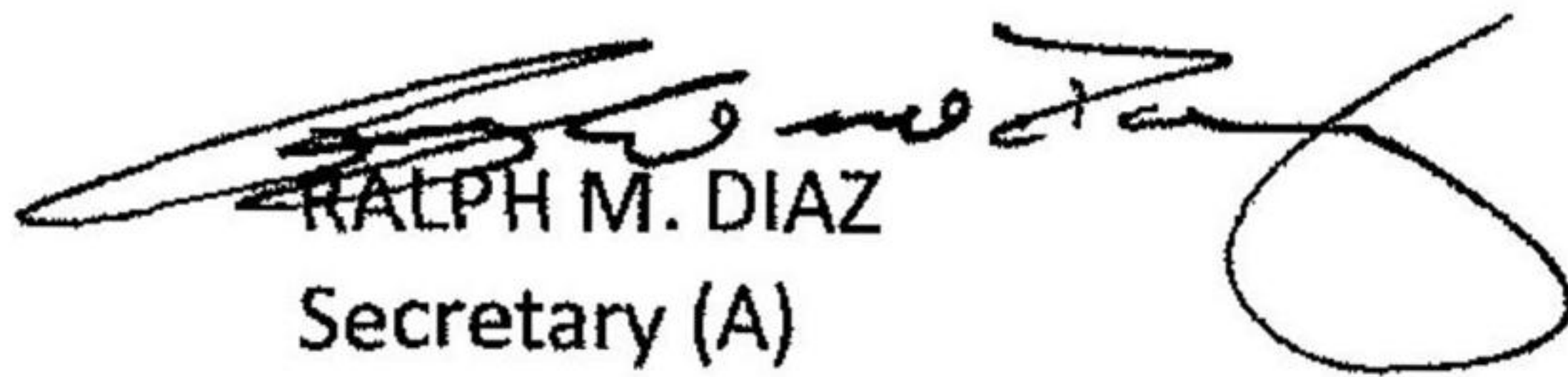
The purpose of this letter is to provide the court with the authority to resentence inmate James Kurtenbach, pursuant to Penal Code (PC) Section 1170, Subdivision (d)(1). PC Section 1170, Subdivision (d) provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation (CDCR), the court may recall a previously ordered sentence, provided the new sentence is no greater than the initial sentence.

Inmate Kurtenbach was received to CDCR on January 6, 2011, and is commended for remaining disciplinary free during his incarceration. Inmate Kurtenbach is currently unassigned, and has participated in Self-Help and Faith Groups that are available to him. Inmate Kurtenbach has been heavily involved in furthering his academic education and positively influencing the education of other inmates through his assignment as a Tutor and Teacher's Aide. Inmate Kurtenbach has been highly commended for his involvement and dedication to the Education Departments by prior Supervisors. There are no active or potential holds, warrants, or detainers and no indication inmate Kurtenbach is associated with any Security Threat Groups at this time.

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Having reviewed the enclosed documentation it appears that inmate Kurtenbach's sentence warrants the attention of the court. Pursuant to PC Section 1170, Subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resentenced.

Sincerely,


RALPH M. DIAZ
Secretary (A)

Enclosures:

Abstract of Judgment
Minute Order
Court Information-Charging Documents
Cumulative Case Summary

cc: Michael M. Roddy, County Court Executive Officer
Los Angeles County District Attorney's Office
Los Angeles County Public Defender's Office